



Notification Waiver Determination

Oracle – Leasehold interest in AirTrunk data centre

Acquisition	Oracle Corporation Australia Pty Ltd (Oracle) applied for a notification waiver in respect of a proposed Data Centre Services Order (DCSO) with AirTrunk SYD3 Pty Ltd, as trustee for AirTrunk SYD3 Land Trust (AirTrunk), to the extent it involves an acquisition of assets, any kind of property and/or legal or equitable rights that are not property and as described in the transaction documents provided as part of the application (the Acquisition). The DCSO provides for an exclusive lease to, and control over, specific areas within a data centre operated by AirTrunk in the Sydney metropolitan area, including colocation space, office and storage space.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	1 June 2026

Parties to the Acquisition	The acquirer, Oracle, is an indirect Australian subsidiary of American multinational technology company, Oracle Corporation. In Australia, Oracle is a provider of enterprise software, cloud and hardware solutions. Oracle neither develops nor owns any data centre buildings/facilities, or supplies any data centre colocation space, office and storage space, power and associated services, to any third parties in Australia. Instead, it licenses or leases the space from third parties such as AirTrunk. The lessor, AirTrunk, is a company that develops and operates data centre campuses. It is a hyperscale data centre specialist creating a platform for cloud, content and large enterprise customers across Asia Pacific and the Middle East region.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and certain publicly available information, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is no horizontal overlap between the parties b. there appears to be alternative colocation data centre space and capacity available for Oracle's competitors

	c. the Acquisition does not appear likely to otherwise limit or prevent competition from rivals. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Woodward pursuant to a delegation under section 25(1)
of the Act**